

Charges against Dayal

Retired Lokayukta

- Pressuring the AG for his son to be made the state Government's standing counsel in the SC.
- Misusing his position as Lokayukta to fetch his son court cases from semi-government bodies under the state Government.
- Approaching the CIC informally for dropping an information query against the Lokayukta.
- Amassing property, including a house in an upscale locality and a house each for his two sons from the Madhya Pradesh Housing Board.



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the office of the AG is a constitutional one. He wasn't empowered to initiate an inquiry against me," alleges Singh, adding that now that he has resigned, he would initiate defamation proceedings against the former Lokayukta.

The war of words between the two may be a recent phenomenon but the bad blood between them has a certain history. Singh insists that Dayal had been pressing hard for his son to be made the state Government's standing counsel in the Supreme Court, a demand which he couldn't entertain. "He misused his position as Lokayukta to fetch his son court cases. At least 113 cases of the Madhya Pradesh State Electricity Board (MPSEB) and 48 of the Madhya Pradesh Housing Board have been given to him," Singh claims. While Singh has also demanded that the state Government order an inquiry into the entire term of Justice Dayal as the Lokayukta under the Commissions of Inquiry Act, the former Lokayukta is unfazed. "He is free to seek legal recourse. My son is a competent lawyer and has made it on his own," says Dayal.

Dayal is no stranger to controversy. In all, 17 cases were registered against the BJP leaders and ministers since he took office, including the sensational dumper scam against Chief Minister Shivraj Singh Chouhan and his wife Sadhna Singh in October 2007, only after a local anti-corruption court ordered the SPE of the Lokayukta to do so. Of these, 13 are still pending while 14 cases dating back to the Congress regime have been disposed of. Dayal himself acquired a house in Riviera Township under his own and his wife's name while his two sons were allotted a house each by the Madhya Pradesh Housing Board in a separate scheme at the Bagh Mughaliya locality.

Dayal is now facing a Bhopal court inquiry, following a Madhya Pradesh High Court order, into his amassing of property. When a Bhopal court had first entertained a private complaint against him, Dayal had written to the Registrar of the Madhya Pradesh High Court, demanding action against the judge. When the high court found the Bhopal judge's actions justified and ordered further proceedings, the SPE of

the Lokayukta moved the high court for a stay against the inquiry. The high court gave its nod to the inquiry only a couple of days before Dayal demitted office. Before the feud with Singh began, Dayal had had a bitter row with the state's Chief Information Commissioner (CIC) P.P. Tiwari. An informal approach by Dayal, in person, to the CIC for dropping an information query against the Lokayukta had prompted the CIC to make a noting in the file that the Lokayukta had tried to influence him. The AG now says that his legal opinion in favour of Tiwari is what turned the Lokayukta against him.

While a scrap of this kind is itself unprecedented between someone holding a constitutional office and a retired chief justice of a high court heading an anti-corruption watchdog, the AG has complicated the matters further by alleging that the Chief Secretary of the state, R.C. Sahani, had been gunning for him. About a year-and-a-half ago, the relations plummeted to such an extent that Singh put in his papers on December 31, 2007 but retracted it after the chief minister intervened. Now, he says, he has done it for good. Sahani has diplomatically avoided joining issue with Singh, saying, "I've known him for long and have always been on excellent terms."

While Singh insists that a powerful cabal of lawyers, politicians and bureaucrats is out to get him, his resignation comes at a time when the Lokayukta is yet to register an FIR into the allegations against him. In fact, the complainant has been summoned no less than five times by the Lokayukta's legal adviser, each time in connection with the technicalities in the manner in which the complaint was filed. He is slated to appear before the Lokayukta on June 29 for a hearing which is likely to be deferred again as a new incumbent is yet to assume charge.

With both the feuding functionaries gone, it would be up to the incoming legal eagles to restore the credibility of the two institutions which have been damaged greatly by the row. ■